

United States Court of Appeals for the Fourth Circuit

Mandate

Asterglen Freight Software, Inc., Appellant, v. Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC, Appellees.

No. SYN-CA4-26-CV-4102 Appellate ECF No. 13 — Issued June 29, 2026

To the United States District Court for the Northern District of West Virginia:

The Court of Appeals entered judgment on June 8, 2026 in the appeal from Civil Action No. SYN-NDWV-25-CV-0618. The certified judgment is reproduced as follows: “This appeal is DISMISSED for lack of appellate jurisdiction, and the matter is REMANDED to the United States District Court for the Northern District of West Virginia for further proceedings. APPEAL DISMISSED AND MATTER REMANDED.”

The judgment further states that the Court did not reach the merits of the January 12, 2026 partial-summary-judgment order and did not vacate that order. It expresses no view on later district-court revision, a later certification, Count II against Meridian Silt Holdings, LLC, or Copper Kestrel Logistics, LLC's amended counterclaim.

The certified costs direction is also reproduced: “Under Federal Rule of Appellate Procedure 39(a)(1), EACH SIDE SHALL BEAR ITS OWN COSTS.” No appellate costs are taxed for or against any party.

Certified opinion, issuance, and return

The panel opinion accompanying this mandate holds that Rule 54(b) required the district court expressly to determine that there was no just reason for delay before its judgment on Count I could become final while other claims remained. The February 4 order granted Asterglen's motion and directed a separate judgment but omitted that determination. The separate judgment did not supply it. Because Count II and Copper's amended counterclaim remained unresolved through entry of appellate judgment, 28 U.S.C. § 1291 did not confer jurisdiction.

The opinion dismisses and remands without adjudicating the contract issue. It leaves the January 12 partial-summary-judgment order undisturbed and does not direct the district court to enter certification findings. The district court may conduct further proceedings within its own authority and consistent with the appellate judgment. The opinion and judgment are certified with this mandate as components of the Court's disposition.

The rehearing period expired June 22, 2026. No rehearing petition or stay motion was filed, and no order altered ordinary issuance. The Clerk released the mandate on June 29, seven days after the rehearing period ended. It is effective upon issuance under Federal Rule of Appellate Procedure 41(c).

Certified and issued on June 29, 2026. /s/ Clerk, United States Court of Appeals for the Fourth Circuit

The district clerk shall file this mandate on receipt and resume administration of Civil Action No. SYN-NDWV-25-CV-0618 in accordance with the judgment.